



POLICE DEPARTMENT

May 21, 2008

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Nelson Ramos
Tax Registry No. 925962
Narcotics Borough Bronx
Disciplinary Case Number 82742/07

The above named member of the service appeared before me on February 5, 2008,
charged with the following:

1. Said Police Officer, Nelson Ramos while assigned to the 42 Precinct, while on duty at or about 2000 hours on October 6, 2005 in the vicinity of [REDACTED] Bronx County, abused his authority as a member of the New York City Police Department in that he stopped an individual known to this Department and questioned him about an object that he alleges fell to the ground from the individual's hand without the requisite legal suspicion to do so.

PG 203-10, Page 1, Paragraph 4 – ABUSE OF AUTHORITY

2. Said Police Officer, Nelson Ramos, while assigned to the 42 Precinct, while on duty, at the time, date, and location in Specification #1, used excessive force against an individual known to this Department: to wit: said Officer tackled said individual to the ground during the arrest of said individual.

PG 203-11, Page 1, Paragraph 2 – FORCE

3. Said Police Officer, Nelson Ramos, while assigned to the 42 Precinct, while on duty, at the time, date and location in Specification #1, abused his authority as a member of the New York City Police Department in that he issued a disorderly conduct summons to an individual known to this Department without having probable cause to do so.

PG 203-10, Page 1, Paragraph 4 – ABUSE OF AUTHORITY

The Department was represented by Nancy Lichtenstein, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. A stenographic transcript to the trial has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Not Guilty of Specification No. 1. The Respondent is found Guilty of Specification Nos. 2 and 3.

SUMMARY OF EVIDENCE PRESENTED

The Department's Case

The Department called as its witnesses Johnny Rosario and Christopher Rosario.¹

Johnny Rosario

Johnny Rosario (Rosario) testified that he owns a locksmith company in the Bronx located at [REDACTED] and [REDACTED]. He has owned this company for eight years and is in the business of servicing locks and selling retail over the counter. He explained that he is a licensed locksmith and to obtain his license, he was fingerprinted and a background check was performed. He said that he was never arrested before the incident in question.

Rosario said he and his son Christopher went to a nearby grocery store around 7:30 p.m. on October 6, 2005 after closing their store for the night. He bought a bottle of caffe latte and his son bought a bottle of soda. He estimated that he was in the store for five minutes. He and his

¹ The Department offered into evidence a ten-page document, the Certified Medical Records of Johnny Rosario from [REDACTED] dated October 7, 2007 [Department's Exhibit (DX) 1].

son Christopher were walking in the street and away from the store when a van pulled up in front of them. Two men jumped out of the van and said, "Let me see your hands. Let me see your hands" and "What the hell did you drop on the floor?" He was surprised and asked the men, "What's happening?" Rosario stated that he did not realize at first the men were police officers because the van pulled up and the men exited the van very quickly.

According to Rosario, two officers in plain clothes initially approached him. One officer was a slim, Caucasian male and the other was a heavysset Hispanic male, who he identified as the Respondent. Rosario testified that he may have dropped his cafe latte wrapper at that time. He asked what was going on because he was scared, confused and did not know what was occurring. The Respondent asked him for his cafe latte bottle and he gave it to him.

Rosario testified that the other officer asked for his arm and he gave it to him. The Respondent who was standing behind him began "yelling curses at me and saying am I cursing, why am I cursing." He turned toward the Respondent and informed him that he was not cursing. The other officer then said a curse word, grabbed his arm and told him he was under arrest. Rosario said he was tackled to the ground by the Respondent after the other officer handcuffed him. When asked to describe how he was tackled, Rosario said the Respondent pushed him hard and fell on top of him. He noted that his chest and head hit the ground. He also noted that he tried to use his arm in order to prevent his head from hitting the ground, but he had fallen and the Respondent landed on top of him. Rosario stated that they started to yell for him to give them his arm and to stop fighting.

Rosario testified that he was transported to the station house where he was strip searched and placed in a cell. He said his son was not arrested. Later he was issued a summons for disorderly conduct [Respondent's Exhibit (RX) A]. Rosario stated that he signed his name at the

bottom of the second page of the summons because they said that was the only way he would be released. He was released after signing the summons. Rosario said that his summons was dismissed when he went to court. He explained that he handed the clerk the court paper; he waited a while and received the paperwork back which had been stamped, "Dismissed." He further explained that he never saw a judge.

Once being released from the station house Rosario stated that he went to the hospital accompanied by his son, Christopher. He was examined by a doctor and x-rays were taken of his feet. The x-rays did not reveal a fracture and he was given [REDACTED] for his pain. Rosario said that he does not have a civil suit pending against the city in regard to the events of October 6, 2005. He said he never filed a complaint against a police officer either prior to October 6, 2005 or following that day.

On cross-examination, Rosario acknowledged that his store was located on the corner of [REDACTED] and [REDACTED]. He noted that there is an elevated No. 2 and No. 5 train line there. He could not remember what time the incident happened or what kind of street lighting there was, but he recalled that it was dark out. Rosario said that there was a traffic light under the elevated train tracks.

Rosario testified that he is 39 years old and has lived in [REDACTED] County his entire life. He stated that the van that pulled up next to him was blue. He said that he has seen police vehicles including police vans on prior occasions, but he has never had a van stop right next to him with people jumping out and telling him to stop. He said that he was taking the wrapper off the glass bottle when the van pulled up. He acknowledged that it was a clear, plastic cellophane wrapper about two inches long and one-half to one inch wide that was on the neck or cap area of the

bottle. Rosario also noted that he was walking with the bottle at chest level and he never had a chance to remove the bottle's cap.

Rosario admitted that an individual he later learned was a police officer exited the car and asked to see his hands. He stated that he showed the officer his hands by placing them in front of him with one hand holding the bottle. His bottle was not in a bag. He could not recall exactly where his son was standing. He recalled that he was wearing a locksmith jacket with pockets on either side.

Rosario said two officers approached him while two other officers exited the van at a later time. The first officer, the Caucasian officer, came out of the passenger side front door and was the first officer to reach him. That officer asked to see his hands. Rosario stated that the Respondent reached him in about five seconds and as he stood behind him, the Respondent was yelling profanities in his ear. Rosario said the profanities were, "What the fuck," "Why the fuck are you cursing at me?" "Don't curse at me." He said the Respondent was yelling at him more than the officer standing in front of him. Rosario stated he was not yelling or cursing, he asked the first officer who approached him why he was stopped. He noted that he never raised his voice when talking to the officers.

Rosario stated that the first officer handcuffed one arm and then he was immediately pushed and tackled to the ground by the Respondent. He said his other arm was pinned beneath his body as the Respondent lay on top of him. Rosario explained that he was complying with the officers at this time. He testified that eventually his other arm was handcuffed while he was on the ground and he was later transported to the station house.

Rosario acknowledged that the summons he was issued consisted of two sides. He admitted that he wrote, "I agree with the officer's statement" and signed his name, "Johnny

Rosario” on the back of the summons near the bottom. He acknowledged that both were in his handwriting. He stated that the Respondent had him write the above-mentioned statement on the summons and he was forced to sign the summons agreeing with the statement. He said the officers threatened to keep him in jail unless he signed the summons. Rosario admitted that he never complained to the Civilian Complaint Review Board (CCRB) that the officers threatened to keep him in jail unless he signed the summons. He stated that he was told by the Respondent, “You can go if you just agree and write this and agree with it,” and place his signature on the summons. He was questioned as to whether as a businessman he would sign a statement without reading it and Rosario responded that he would sign a statement after being beaten.

Rosario stated that he was beaten by the officers and went to the hospital four hours later. He explained that he did not remember being asked by the triage staff at the hospital to assess his pain level on a scale of 1 to 10 and he did not recall how much pain he was in that day. He was asked, “You said mild. This was four hours later. Okay?” and he answered, “Okay.” He also stated he was not aware that the hospital found no bruising. Rosario acknowledged that he told the CCRB investigator 12 hours after the incident that he was kicked in the groin while on the ground by an officer. When questioned as to why there was no mention of the kick in the groin in the medical records, Rosario explained that the hospital did not ask if he was struck in the groin and he did not know why it was not mentioned.

Rosario stated he had photographs when asked if he remembered that the doctors had said there were no abrasions or lacerations on him when he was evaluated four to five hours later. He stated that he did not see the report prepared by the hospital and does not know what was missing. He said there were cuts and abrasions to his head and bandages were needed to close

his wounds. He admitted that no stitches were required. Rosario said he did not recall being prescribed one tablet of [REDACTED] and he did not remember if he took it at the hospital or at home.

Rosario said that he did not know of drug activity at the intersection of [REDACTED] street and Southern Boulevard in the six months prior to October 6, 2005. He explained that there is a constant police presence in the area. He stated that he closes the store at 7:00 p.m., leaves around one-half hour to one hour later and that most other businesses in the area start closing at that time. He acknowledged that there are people coming and going at that time and there is a bus stop where the incident occurred.

Christopher Rosario

Christopher Rosario (Christopher), age 22, works for his father's locksmith company. He explained that he has worked for the company since he was in high school and upon graduating he continued to work there. He explained that he recently obtained his locksmith's license by having two locksmiths sign affidavits stating that they believed in him and saw that he progressed and should receive his license. Before he became a licensed locksmith, Christopher said that he submitted to a background check.

Christopher testified that on October 6, 2005 about 7:30 pm, he and his father had just closed the store. They went across the street to a grocery store where he purchased an iced tea and an iced coffee. They also obtained change to take the bus. As they proceeded to the bus stop to go home, Christopher believed there were people on the sidewalk so he and his father proceeded to walk on Southern Boulevard in the lane closest to the sidewalk next to the bus stop. Christopher stated that he was walking two to three feet ahead of his father when an N.Y.P.D. van drove next to them. An officer not in uniform with long hair exited the van and two officers,

a young male and a heavysset male, approached his father. Christopher said that he assumed they were police officers, but they did not show their badges or say who they were.

According to Christopher, the first comments uttered by the officers were, "What the F did you throw on the ground? What the F are you doing here? What the F is going on?" Christopher characterized the officers' behavior as "very, aggressive, as if we were doing something wrong." He said his father raised his hands and asked, "What's happening? What is going on?" Christopher also stated he was bombarded with questions such as what were they doing at that location and are they aware that the area is full of drug dealers selling drugs. Christopher said the officer with long hair was standing in front of his father and the other two officers, a heavysset officer and a younger officer were to the left of his father. He stated the heavysset officer snatched the drink from his father's hand as his father calmly continued to ask what was going on.

Christopher testified that very quickly the officers grabbed his father and put him on the ground. He stated that the heavysset officer hit his father in the face with an "open-hand slap." He explained that he did not see the slap connect; but he saw the officer's leg go back and forward. He also saw that officer kick his father in what he assumed was the crotch area. Christopher said the younger officer grabbed his father by the legs. Christopher said he was asked by a skinny officer if he had anything on him that he should be aware of and he replied, "No." The officer then told him to take a seat. Christopher said that a search of his father ensued, including the removal of his shoes and nothing was yielded. He testified that the officer with long hair searched his own bag and found nothing. The officers did count the money from the end-of-the-day transactions and returned the money and receipt to him. The officers told his father to get up, he did, his father was handcuffed and then they left in a van.

Christopher stated that he learned later that night that his father was taken to a station house. He explained that his father returned home with a bruise to his face and was limping. He said that he went with his father to the hospital later that night.

On cross-examination, Christopher said the officers pulled up next to him in a marked police van and exited the van. He thinks his father was holding an open bottle when the van pulled up. He said that he was in front of his father at this time. He said the officer who exited the car went toward his father and he could not recall how long it was from the time the two officers exited their van to the time they went back to the van.

Christopher noted that his father had bruises on his face but he did not know if he had cuts on his face. He said that they may have stayed at the hospital until the morning hours because it was busy, but his father was not kept overnight. Christopher acknowledged that he has lived in [REDACTED] his entire life, but he did not know that a lot of drug arrests have been made in the area of the store in recent months. He stated that he did not live in the area of the store and is only there during working hours. He explained that he has worked late at the store occasionally, but normally he only works, eats lunch there and then goes home.

Upon questioning by the Court, Christopher stated that he could not remember exactly where his father's face was bruised, but he believed it was in the front of his face. The only complaints he recalled his father making was that his leg hurt and he observed that he had trouble walking. Christopher could not recall how long his father had been away with the police, but he estimated that it was a short time and before early morning.

The Respondent's Case

The Respondent testified in his own behalf.²

Police Officer Nelson Ramos

The Respondent is an almost eight-year member of the Department currently assigned to the Bronx Narcotics Unit. His duties included combating drug activity within the confines of the 42 Precinct while assigned to the Street Narcotics Enforcement Unit (SNEU) in October of 2005. He said that he would target street drug dealers and users and he did this enforcement while in plain clothes. The Respondent testified that he has made over 100 drug arrests prior to October 6, 2005 and has assisted other officers in making 400 to 500 drug arrests. He further testified that he has handled heroin, cocaine, crack and marijuana in his duties as a police officer and is familiar with the types of packaging used for each of these drugs.

The Respondent testified that the intersection of [REDACTED] Street and Southern Boulevard is within the confines of the 42 Precinct. It is a commercial area with a bodega, a bus stop and a post office close by. He said that there is an above ground train line that runs above Southern Boulevard. Just south of that intersection is a larger commercial strip. He explained that the area is illuminated by street lights and the bodega has a light in front of it. The Respondent stated that he was working in SNEU in plainclothes on October 6, 2005. He was working with three other officers in a marked police van at approximately 8:00 p.m. and he was seated in the rear passenger seat.

The Respondent said he was at the intersection of [REDACTED] Street and Southern Boulevard when he observed Rosario with his hands holding a white object close to his face. It was

² The Respondent offered into evidence a two-page document, a photocopy of the front and rear sides of Criminal Court Summons 425415547-5 issued to Johnny Rosario by the Respondent on October 6, 2005 [Respondent's Exhibit (RX) A].

estimated that the object, an inch wide and a half an inch in length was held approximately six inches from his face. He stated that he believed the object was a glassine of heroin. He explained that he made numerous arrests on that corner for heroin and that there was a large seizure of heroin packaged in that same manner seized from that corner three to four months earlier. He further explained that in his training, the way the heroin was packaged was consistent with how it was sold within the confines of the 42 Precinct. The Respondent testified that he immediately told the van driver to stop.

The Respondent testified that he saw Rosario with a person who would later be identified as his son. They were walking side by side. He stated that there were other people on the street. Once the van was stopped, he exited and approached Rosario. The Respondent said he had his shield visible around his neck, his radio in his pocket and his firearm on his hip. He said to Rosario, "Let me see your hands." Rosario replied, "I don't have to show you shit." The Respondent said he repeated his command in a louder tone of voice. Rosario responded, "Fuck you. I don't have to show you shit." The Respondent stated that he was approximately eight feet away from Rosario at that time. He did not see what he did with the white object that he had in his hands. He did not have anything in his hands when the Respondent approached him.

The Respondent stated that Rosario "went ballistic" as he continued to yell and scream. The Respondent said to him, "Sir, calm down." He said that Rosario's son did not get involved in the situation and he did not know what his son was doing at the time. The Respondent said that there were people in the area and they were backing away from Rosario and he felt that he had to take some type of police action. He asked Rosario for his identification, but he continued to use profanity and he refused to provide it. The Respondent stated that he asked for identification three times and after Rosario refused the third time, he grabbed his left hand in

order to place him under arrest and charge him with disorderly conduct. The Respondent denied that he had any physical contact with Rosario up to that point. He said that he had not been standing behind Rosario.

The Respondent said that he grabbed Rosario by the wrists but he pulled away. As he tried to grab his other wrist, they fell to the ground. The Respondent explained that he landed on top of Rosario, but he still attempted to place his arm behind his back. Eventually with help, he was able to place him in handcuffs. The Respondent estimated that it took between two and five seconds from the time they fell to the ground to the time he had Rosario in handcuffs. He helped him to his feet and then transported him to the station house. The Respondent said that on his way to the station house, Rosario told him that he was sorry, but he told him to "shut up."

The Respondent stated that a "pat down" of Rosario was done as well as a search at the station house, but it failed to yield any narcotics. The Respondent said that his partners did a search at the scene to recover any glassines but they did not find any narcotics. Once at the station house, Rosario was brought before the desk officer. He stated that there were no injuries to him and he did not complain of any injuries. The Respondent said that he performed a warrant check on Rosario which took approximately two minutes. He stated that he took another two minutes to prepare the summons for Rosario. He explained to him why he was receiving the summons and Rosario told him that he was wrong and sorry. He said that Rosario signed the acknowledgment on the front of the summons. He also read the back of the summons to Rosario who said that he agreed with the statement and would sign the back of the summons also. The Respondent mentioned that Rosario shook his hand before he left the 42 Precinct Station House. The Respondent denied that he ever threatened to keep Rosario in the station house if he did not

sign the summons. The Respondent said that Rosario left the station house on his own and never asked to make a complaint or to contact the CCRB.

During cross-examination, the Respondent acknowledged that it was a dark night when he was in a moving van making observations of Rosario. He admitted that he never recovered the object that he alleged Rosario had in his hand. He also admitted that he never observed him participate in a drug transaction. He acknowledged that he never received information from an informant that Rosario was in possession of narcotics. The Respondent said he arrested Rosario for disorderly conduct.

When questioned as to whether he observed people watching the incident on October 6, the Respondent stated that there were people watching. The Respondent acknowledged that he was asked by CCRB on December 8, 2006 if he specifically observed people watching and the Respondent said that he did not actually see people stop and look.

During further direct examination, the Respondent was read a question and answer from his December 8, 2006 CCRB interview where he informed the CCRB investigator that there were people around and they may have been watching.

During questioning by the Court, the Respondent was asked specifically what the disorderly conduct was that Rosario engaged in. The Respondent replied, "The people around him were, like, backing up, they were scared. The public was a little in fear of him." He continued, "As he kept acting up, they just kept going back."

During further direct examination, the Respondent explained that because of the commotion between the officers and Rosario, the public would have to cross the street on Southern Boulevard to walk by. He said that the police van was angled toward the curb, but that this situation took over the entire sidewalk and went into the street.

FINDINGS AND ANALYSIS

Specification No. 1

The Respondent stands charged with abusing his authority by stopping and questioning Rosario without the requisite legal suspicion to do so. To understand whether this stop and questioning was with or without authority, it is important to note that the New York State Court of Appeals has set forth four levels of street encounters (See People v. De Bour, 40 N.Y.2d 210 (1976)). These levels of encounter have similarly been adopted by the Police Department (see Activity Log Insert PD 344-153):

Level I Request for Information, where a police officer has an articulable reason to approach someone, yet lacks the authority to search the person based on this low-level of encounter.

Level II Common-Law Inquiry, where there is founded suspicion that criminality is afoot based on false responses to questions posed during the Request for Information stage or police observation. At this level of encounter, the person can consent to a search, but it must be voluntary and knowing.

Level III Stop, Question and Frisk, involves a reasonable suspicion by the police officer that a person is committing, has committed or is about to commit a felony or Penal Law misdemeanor. This level of suspicion looks to the police officer's judgment and experience in determining whether he or she reasonably suspects criminal activity. At this level of encounter, the police officer can seek to get consent to search and may frisk for a weapon where the police officer believes he is in danger of physical injury.

Level IV Arrest involves probable cause to believe that a crime was committed and the person arrested committed it. At this level, a search incident to the arrest to secure weapons and prevent evidence destruction as well as to inventory property is permissible.

In this instance, the Respondent's initial approach fell within the category of Level I Request for Information. He testified that as the van he occupied was driving in the night, he observed what appeared to be Rosario holding close to his mouth a glassine of heroin and he decided to stop him. This Court understands that a police officer's decision to stop someone is one that is made very quickly on the streets. It is not the intention of this Court to second-guess the split-second decision made by the Respondent. It is uncontested both by the Respondent's

testimony and that of Rosario that the Respondent stated upon his approach, "let me see your hands." Rosario testified that he held his hands out including the one that held the caffe latte. Christopher said that his father held his hands up as he inquired what was going on. The Respondent testified that Rosario refused to put his hands out and used profanity. The issue raised is whether the Respondent abused his authority by stopping and questioning Rosario. Based on his observations and belief that he saw Rosario put a glassine of heroin close to his mouth, the Respondent appeared to have authority to stop him and request information. Even if the Respondent's observations did not meet the DeBour standard to request information, he was close enough in the stop and the making of inquiries. Rosario stated that he had the plastic, cellophane wrapper to his café latte in his hand when stopped. The Respondent could ask Rosario what he had in his hand and whether he dropped anything.

Accordingly, I find the Respondent is found Not Guilty of Specification No. 1.

Specification Nos. 2 and 3

The Respondent stands charged herein with using excessive force in that he tackled Rosario to the ground during his arrest. The Respondent is also charged with abusing his authority by issuing Rosario a disorderly conduct summons without having probable cause to do so. I find the Respondent Guilty as charged. Evidence adduced at trial established that the Respondent based on his narcotics experience thought he observed Rosario place a glassine of heroin close to his mouth. The Respondent was in a moving police vehicle at the time. Once he approached Rosario, however, he did not see the glassine. He stated that he did not see it in his hand. There was no testimony elicited nor did the Respondent testify that he searched the area

close to Rosario when he approached him to see if he dropped the glassine on the ground. At this point the Respondent lacked probable cause to make an arrest, he could only make inquiries.

Reasonable suspicion is the required standard for a police detention of a suspect short of an actual arrest.³ People v. Pines, 99 N.Y.2d 525, 527 (2002). Reasonable suspicion consists of a level of knowledge which would lead an “ordinarily prudent and cautious” person, see People v. Cantor, 36 N.Y.2d 106, 112-13 (1975), under the circumstances, to believe a crime has been, is being, or is about to be committed. See People v. Roque, 99 N.Y.2d 50, 54 (2002). Without the drugs or any confirmation of the Respondent’s initial observation from his moving van, there was no basis to continue further with Rosario, particularly in a physical manner. The Respondent testified that he asked Rosario three times for identification and when he refused the third time, he decided to take police action which was to place handcuffs on him. The Respondent, who was in plainclothes at the time, stated that he had his shield around his neck. There was some question among the witnesses as to whether the Respondent identified himself. Notwithstanding, even if the Respondent had been clearly identified as a police officer, without a legal basis to continue forward with Rosario, any force used against him would have been excessive.

The Court of Appeals in New York has held that an individual has an absolute right to refuse to answer questions posed by police officers. People v. Rogers, 48 NY2d 167, 176 (1979). Rosario had the right to refuse to cooperate with the Respondent and to even walk away. Rosario testified that the Respondent tackled him to the ground to handcuff him. The Respondent testified that he tried to grab Rosario’s hand and in the process, they both fell to the ground. Assuming the facts in the light most favorable to the Respondent in that his observations raised his level of suspicion to Level II, he still could not force Rosario to do

³ Level III encounter, Stop, Question and Frisk.

anything such as give him identification and show his hands. Thus any force he used against him, including attempting to place handcuffs on him would be considered excessive force for a stop where he could only engage in consensual police action and make verbal inquiries.

Medical records were entered into evidence (DX 1) and although Rosario alleged that he was kicked while on the ground including in the groin area, medical records only showed "[REDACTED]

[REDACTED] or s [REDACTED] As noted above, it is not necessary to show physical injury.

Accordingly, I find the Respondent Guilty of Specification No. 2.

The Respondent could not articulate within the meaning of the Penal Law how Rosario was engaging in disorderly conduct. He stated that Rosario used profanity as he refused to show his hands or provide identification, but this refusal alone is not disorderly conduct. When questioned by the Court, the Respondent described the disorderly conduct as follows: "The people around him [Rosario] were, like backing up, they were scared. The public was a little in fear of him." This is insufficient to establish that Rosario was disorderly particularly since the Respondent described himself falling on top of Rosario in an effort to handcuff him. The public would likely back away from a scene such as that.

The disorderly conduct summons (RX A) that was issued to Rosario indicated that he violated Penal Law Section 240.20 subdivision one. The language of the summons states in pertinent part:

"At t/p/o [time and place of occurrence] undersigned observed the defendant acting in a disord[er]ly way by engaging in violent behavior towards pedest[r]ians which caused the public to be alarmed. The threatening behavior of the def[endant] resulted in the undersigned handcuffing the defendant."

The Respondent argued that as he approached Rosario, he became loud, belligerent and caused pedestrians to cross the street. While this account of what transpired sounds less than credible and somewhat contrived given the fact that Rosario had been observed walking down the street, handcuffing him did not seem the most effective way to control a situation the Respondent initiated.

Accordingly, I find the Respondent Guilty of Specification No. 3.

PENALTY

In order to determine an appropriate penalty, the Respondent's service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974). The Respondent was appointed to the Police Department on March 1, 2000. Information from his personnel record that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of using excessive force during the arrest of Rosario and abusing his authority by issuing him a disorderly conduct summons without probable cause. In Disciplinary Case No. 80959/05, a five-year member of the service with no prior disciplinary record forfeited five vacation days for wrongfully stopping, frisking, searching, being discourteous and handcuffing the complainant. In that case, the Court found that the Respondent's testimony that the complainant summoned him for the express purpose of cursing him stretched the Court's capacity for belief. In this instance, although the Court believed the Respondent had a basis to make the stop of Rosario, he lacked the probable cause to use force and arrest him.

In this matter, the failure of Rosario to identify himself seemed to be the impetus which led to his arrest. The Assistant Department Advocate cited Court of Appeals cases which stand

for the proposition that police detention of an individual is a significant impediment of one's freedom of movement and requires reasonable suspicion that a crime had been or is about to be committed. People v. Holmes, 81 NY2d 1056, 1058 (1993). However, an individual being questioned by the police has a constitutional right not to respond and can remain silent, walk or even run away; and his refusal to answer questions is not a crime. People v. Howard, 50 NY2d 583, 586 (1980). The same holds true for Rosario.

Therefore, based on the above, it is recommended that the Respondent forfeit five vacation days.

Respectfully submitted,



Claudia Daniels-DePeyster
Assistant Deputy Commissioner – Trials

